

November 7, 2018

Dr. Andreas Neofytou

Executive Director

Archbishop Makarios III Hospital,

1474, Nicosia

DECISION

COMMISSIONER FOR THE PROTECTION OF PERSONAL DATA

SUBJECT: Loss of medical file

I refer to the letter sent from my Office dated 07/05/2018, regarding a complaint submitted by Ms. XΨ (hereinafter referred to as the "Complainant"), concerning the failure to satisfy her right of access to personal data relating to her from the Archbishop Makarios III Hospital (hereinafter referred to as the "Respondent") and specifically to receive a copy of her personal medical file.

2. In my letter dated July 5, 2018, I granted the Respondent the right to submit written views, positions, and anything else they consider relevant to the complaint by July 19, 2018, and at the same time provided the data as derived from the complaint as follows:

- The Complainant exercised her right to access her medical file by sending a letter to the Respondent on 12/28/2016, for which she has not received a response to this day.
- The Complainant's lawyer sent two (2) letters regarding the same issue, dated 04/26/2017 and 02/13/2018, respectively, for which again no response has been received from the Respondent.

3. The Respondent, in a reply letter dated 07/12/2018, which was received on 07/23/2018 and bears his signature, the Supervisor - Inspector Ω.Κ.Π. states the following:

- The Complainant had spoken several times with the Supervisor - Inspector and was informed that part of her medical file, which was held in the office of Dr. XX, had been lost,
- Dr. XX held the Complainant's file to arrange an appointment for surgery,
- The Complainant was updated on the developments regarding the finding of her file both by the Supervisor - Inspector and by a friend of hers who works at the Respondent, with her own consent,
- The last time the Supervisor - Inspector communicated with the Complainant was around April 2018, when together with the person in charge of the Outpatient Clinics, they took from the

Office of Dr. XXΨ, the new medical file that was opened for the Complainant,

- A meeting took place between Dr. XΨΨ, Director of the Respondent, and the Complainant where it was mentioned that she would receive every possible assistance from the Respondent for her medical examinations due to the loss of her medical file. Present at the meeting were the Supervisor - Inspector, the Complainant's husband, and the assistant of Dr. XΨΨ,
- Several attempts were made by the Respondent to locate the file.

4. In my reply letter dated 07/30/2018 to the Respondent, and after considering the provisions of Articles 23(1)(στ), 23A, and 25(1) of Law 138(I)/2001 on the Processing of Personal Data (Protection of the Individual), which was in force, I initially found a violation of the obligations of the Respondent as the data controller and requested that he state any reasons for which he believes that a monetary penalty of up to five thousand euros should not be imposed for his failure to comply/respond to the examination of the complaint.

5. I received a reply letter from the Respondent, dated 09/12/2018, which was received on 09/18/2018 and bears the signature of the Head of Records of the Respondent, stating the following:

- Superhuman efforts were made both within and outside the Records to locate the Complainant's medical file, but unfortunately, this was not achieved,
- For the last two years, patient complaints regarding the right of access are almost nonexistent, and this can be confirmed by the person in charge of patient complaints, and
- An on-site visit to the Records will be conducted, so that we can gain firsthand knowledge as an Office of the conditions, means, and methods by which the Records operate, to get to know the people and their knowledge, and perhaps with our contribution and knowledge, better results can be achieved than the existing ones.

6. Taking into account the above, I note that a visit and meeting took place with Dr. XΨΨ, Director of the Respondent, at an earlier stage and time, to

be informed about the progress of the computerized system and the security and protection measures for the medical files of patients.

6.1. During my visit, I was informed that:

- Procedures regarding the movement of medical files have been activated and the system for recording the movement of files has begun to operate,
- Electronic storage of X-rays has begun,
- A record of lost files is scheduled in the computerized system.

****System****

- Accessibility measures and levels for the medical record have been established,
- that no one can have remote access (from computers outside the hospital) to the system, and
- signs have been placed stating that it is strictly prohibited for patients to possess files.

7. For this purpose, I issued a relevant Directive dated 11/10/2017, numbered 4/2017, which is posted on my Office's website, with instructions to the data controllers (Ministries/Departments/Services) of the Public Sector and Organizations of the broader Public Sector for the exercise of the right of access by employees or job applicants, which remains in effect to this day.

7.1. By analogy to what is stated in Directive 4/2017, the same applies to any citizen exercising the right of access to the public sector and the broader public sector. In this specific case, the complainant exercised the right of access, and the entity against which the complaint was made failed to satisfy it.

8. According to Article 17 of the Law on the Safeguarding and Protection of Patients' Rights of 2004 (Law 1(I)/2005), the competent healthcare provider must maintain medical records, which reflect the course of the patient's treatment. These records include detailed information identifying the patient and the responsible healthcare provider, as well as medical information regarding the treatment the patient is receiving, the patient's previous medical history, the diagnosis of the current medical condition, and the therapeutic regimen provided.

8.1. Based on Article 18 of Law 1(I)/2005, the patient has the right to information, access, and objection regarding information concerning themselves that is included in the medical records. In exercising the right of access, the provisions of Article 15 of Regulation (EU) 2016/679 (hereinafter referred to as the "Regulation") apply correspondingly, provided that this does not adversely affect the rights and freedoms of others.

8.2. According to the provisions of Article 25 of Law 1(I)/2005, a healthcare provider who violates any of the provisions of Article 17 is guilty of an offense, and, mutatis mutandis, the provisions of Articles 25 and 26 of Law 138(I)/2001 apply, which was in force during the period when I initially identified the violation, namely the loss of the medical file.

8.3. Furthermore, Article 2(1) of the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law 125(I)/2018 (hereinafter referred to as the "Law"), states that a breach of personal data means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access to personal data that has been transmitted, stored, or otherwise processed.

8.4. Additionally, according to Articles 24 and 32 of the Regulation concerning the responsibility of the data controller and the security of processing, among other things, it is stated that the latest developments, the cost of implementation, the nature, scope, context, and purposes of processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons are taken into account, and the data controller and the processor implement appropriate technical and organizational measures to ensure a level of security appropriate to the risks, and the data controller

can demonstrate that the processing is carried out in accordance with this Regulation. The aforementioned measures are reviewed and updated as necessary.

8.5. According to Article 58 (2) of the Regulation, each supervisory authority has all of the following corrective powers: "... (h) to impose an administrative fine pursuant to the...

****Article 83****, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each individual case...

8.6. In Article 83 of the General Regulation 2016/679, which refers to the general terms for the imposition of administrative fines, the following is stated:

"7. Subject to the corrective powers of the supervisory authorities according to Article 58 paragraph 2, each Member State may determine the rules for whether and to what extent administrative fines may be imposed on public authorities and bodies established in that Member State..."

8.7. In conjunction with the above, the provisions of Article 32 of the Law grant me the right, as Commissioner, to impose an administrative fine in the event that I find a violation by a public authority or public body, which may not exceed two hundred thousand euros.

9. Furthermore, in the past, the Commissioner for Personal Data Protection, based on the authority provided to him by Articles 23(f) and 25 of the Law on the Processing of Personal Data (Protection of the Individual), Law 138(I)/2001, imposed a monetary penalty of €3,000 (three thousand euros) on the Archbishop Makarios III Hospital for a violation of Article 10(3) of the Law due to the exposure on a counter in a corridor of the Hospital of the results of sensitive health data of patients, specifically the results of clinical laboratory analyses in September 2010.

10. It appears that measures have been taken to improve the data protection of patients' medical records at NAMIII, and that daily actions are being taken to improve and harmonize with the provisions of the Regulation and the Legislation, but these measures require further improvement as they have not reached the desired level.

10.1. In fact, in the complaint/report under examination, there is a violation of the obligation of the Respondent, in his capacity as data controller, to take appropriate measures for the security of the data and to protect them from accidental or unlawful destruction or from accidental loss.

11. As a result of the above and based on the powers conferred upon me by the provisions of Article 58(2)(i) of the Regulation and Article 32 of the Law, having taken into account the facts of the complaint, the mitigating factors mentioned, the fact that there were prior decisions as well as the sensitivity of the data contained in the lost file, I DECIDED that, in my capacity as the Respondent as data controller, I impose a monetary penalty of €5,000 (Five Thousand Euros).

****Eirini Loizidou - Nikolaidou****

****Commissioner for Personal Data Protection****